



## CHAPTER x.

An Act to confer further powers on the Pontypool Gas and Water Company and for other purposes. A.D. 1918.

[27th June 1918.]

**W**HEREAS by the Pontypool Gas and Water Act 1873 (hereinafter called "the Act of 1873") the Pontypool Gas and Water Company (hereinafter called "the Company") were incorporated and were authorised to maintain certain existing and to construct additional gasworks and waterworks and to supply gas and water within the limits thereby respectively defined:

And whereas by the Pontypool Gas and Water Act 1890 (hereinafter called "the Act of 1890") and the Pontypool Gas and Water Act 1909 (hereinafter called "the Act of 1909") the limits of the Company for the supply of water have been extended the Company have been authorised to make and maintain additional waterworks and gasworks to raise additional capital and to borrow further money and further provisions have been enacted with reference to the Company's water and gas undertaking:

And whereas the following is a statement of the share capital of the Company authorised by the said Acts and of the amounts which have been issued:—

| Act.          | Authorised Capital. | Issued Capital. | Description.                              |
|---------------|---------------------|-----------------|-------------------------------------------|
|               | £                   | £               |                                           |
| Act of 1873 - | 13,200              | 13,200          | 10 per cent. stock.                       |
| Act of 1873 - | 13,200              | 13,200          | 10 per cent. shares of 12 <i>l.</i> each. |
| Act of 1873 - | 13,600              | 13,600          | 7 per cent. shares of 10 <i>l.</i> each.  |
| Act of 1890 - | 40,000              | 40,000          | 7 per cent. shares of 10 <i>l.</i> each.  |
| Act of 1909 - | 75,000              | 45,510          | 7 per cent. shares of 10 <i>l.</i> each.  |

and the whole of the capital so issued is fully paid up :

[*Price 2s. 6d.*]

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And whereas the following is a statement of the loan capital of the Company authorised by the said Acts and of the amounts which have been issued :—

| Act.          | Authorised Loan Capital. | Issued Loan Capital. | Description.                   |
|---------------|--------------------------|----------------------|--------------------------------|
|               | £                        | £                    |                                |
| Act of 1873 - | 10,000                   | 10,000               | } 4 per cent. debenture stock. |
| Act of 1890 - | 10,000                   | 10,000               |                                |
| Act of 1909 - | 25,000                   | 7,095                |                                |

And whereas the demand for water within the Company's limits for the supply of water has increased and is still increasing and it is expedient to authorise the Company to construct additional waterworks :

And whereas it is expedient to impose a calorific standard for the gas supplied by the Company in substitution for the present illuminating standard :

And whereas it is expedient that the Company be authorised to raise additional capital and that further powers be conferred upon them and further provisions be made with reference to their undertaking as in this Act contained :

And whereas plans and sections showing the lines and levels of the works authorised by this Act such plans showing also the lands which may be taken or used compulsorily under the powers of this Act and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Monmouth and are hereinafter respectively referred to as the deposited plans sections and book of reference :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords



Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :— A.D. 1918.

1.—(1) This Act may be cited as the Pontypool Gas and Water Act 1918. Short and collective titles.

(2) The Pontypool Gas and Water Acts 1873 to 1909 and this Act may be cited together as the Pontypool Gas and Water Acts 1873 to 1918.

2.—(1) The following Acts and parts of Acts so far as the same are applicable for the purposes of this Act and not inconsistent with the provisions of the Pontypool Gas and Water Acts 1873 to 1909 and this Act are subject to the provisions of this Act hereby incorporated with this Act (namely):— Incorporation of Acts.

The Lands Clauses Acts :

The Companies Clauses Consolidation Act 1845 except the provisions thereof with respect to the conversion of borrowed money into capital :

The Companies Clauses Act 1863 (except Part IV. Change of Name) as amended by subsequent Acts :

The Waterworks Clauses Acts 1847 and 1863 :

The Gasworks Clauses Acts 1847 and 1871 :

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof but such last-mentioned provisions shall apply only to the new waterworks by this Act authorised and in construing those provisions for the purposes of this Act the expressions “the railway” and “the centre of the railway” shall respectively mean the new waterworks and the boundaries thereof respectively.

(2) In the application to the Company of the Waterworks Clauses Act 1847 as incorporated with the existing Acts and this Act section 44 shall be read as if the words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” were omitted therefrom and as if the words “in case the occupier shall make default in payment of such rent and the owner shall have required a supply of water to such house” were inserted in that section in lieu of the words “in his default.”



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(3) In the application to the Company of the Gasworks Clauses Act 1871 as incorporated with the existing Acts and this Act section 13 shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section.

Definitions.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction :—

"The Company" means the Pontypool Gas and Water Company;

"The Act of 1873" "the Act of 1890" and "the Act of 1909" respectively mean the Pontypool Gas and Water Act of those respective years;

"The existing Acts" means the Act of 1873 the Act of 1890 and the Act of 1909;

"The undertaking" means the undertaking of the Company under the existing Acts and this Act;

"The water undertaking" means so much of the undertaking as relates to water;

"The gas undertaking" means so much of the undertaking as relates to gas;

"The water limits" means the limits within which the Company may supply water as defined in the Act of 1873 and extended by the Act of 1890;

"The gas limits" means the limits within which the Company may supply gas as defined by the Act of 1873;

"The new waterworks" means the works authorised by the section of this Act of which the marginal note is "Power to make new waterworks";

"The map" means the Ordnance map scale  $\frac{1}{2500}$  (2nd edition 1901).



WATER.

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4. Subject to the provisions of this Act the Company may make and maintain in the county of Monmouth the following works in the situations and according to the lines and levels shown on the deposited plans and sections (that is to say):—

Power to  
make new  
waterworks.

- (1) An intake and collecting chamber (No. 1) in or across or adjacent to the stream or spring known as the Lower Folly spring;
- (2) A line or lines of pipes (No. 1) commencing in the intake and collecting chamber (No. 1) by this Act authorised and terminating in the existing filter house of the Company situate in the enclosure numbered on the map 257 in the parish of Llanvihangel-Pontymoill in the urban district of Panteg;
- (3) A line or lines of pipes (No. 2) commencing in the said filter house and terminating in the tank (No. 1) by this Act authorised;
- (4) A tank (No. 1) in the enclosure numbered on the said Ordnance map 264 in the parish aforesaid;
- (5) An intake and collecting chamber (No. 2) in the parish and urban district of Abersychan in or across the stream known as the Nant-y-Gollen and the stream flowing from the spring known as the Nant-y-Gollen spring and at or near the confluence of those two streams;
- (6) A line or lines of pipes (No. 3) commencing in the intake and collecting chamber (No. 2) by this Act authorised and terminating in the tank (No. 2) by this Act authorised;
- (7) A tank (No. 2) in the said parish of Llanvihangel-Pontymoill in Ty-poeth Wood;
- (8) A line or lines of pipes (No. 4) commencing in the tank (No. 2) by this Act authorised and terminating in the public road between Pontypool and Abergavenny;
- (9) A line or lines of pipes (No. 5) in the parish and urban district of Blaenavon commencing by a junction with the Company's existing pipes in the public road known



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as the Cwmavon Road and terminating by a junction with the Company's existing pipes in the premises of Westlake's Brewery ;

and the construction of such of the said works or such parts thereof as have already been constructed is hereby sanctioned and confirmed.

Power to  
make sub-  
sidiary  
works.

5. In addition to the new waterworks the Company may upon the lands shown on the deposited plans and described in the deposited book of reference in connection with the new waterworks make and maintain all such cuts channels catch-waters tunnels adits headings drifts pipes conduits culverts drains sluices byewashes shafts water-towers overflows waste-water channels gauges filters tanks chambers banks walls fences bridges embankments piers approaches engines machinery telegraphs telephones and appliances as may be necessary or convenient in connection with or subsidiary to the new waterworks or any of them or necessary or convenient for the purpose of augmenting or improving the supply of water.

Limits of  
deviation.

6. In the construction of the new waterworks the Company may deviate to any extent not exceeding the limits of deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding ten feet upwards and to any extent downwards Provided that except for the purposes of crossing over a stream no part of the pipes shall be raised above the surface of the ground.

Period for  
completion  
of new  
waterworks.

7. If the new waterworks are not completed within the period of five years from the termination of the present war then on the expiration of that period the powers by this Act granted to the Company for executing the same or in relation thereto respectively shall cease except as to so much thereof as is then completed Provided always that subject to the restrictions and provisions of this Act the Company may at any time after the expiration of the said period lay down additional lines of pipes as part of the line or lines of pipes (No. 1) (No. 2) (No. 3) (No. 4) and (No. 5) by this Act authorised and alter enlarge extend and renew the new waterworks or any of them as they may think expedient to provide for the requirements of their water supply.



8.—(1) The Company may for the purposes hereinafter mentioned enter upon take and use the following lands (that is to say):—

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Power to  
acquire lands  
for water-  
works.

- (i) For the purposes of or in connection with the new waterworks such of the lands shown on the deposited plans and described in the deposited book of reference in connection with the new waterworks as they may require:
- (ii) For the purpose of protecting from pollution fouling or contamination waters which they are by the Act of 1909 or this Act authorised to appropriate and use and for other purposes of their undertaking including as regards the lands (c) hereinafter mentioned the purposes of subsection (2) of this section the following lands shown on the deposited plans and described in the deposited book of reference:—

(A) Lands in the parish of Llanvihangel-Pontymoill in the urban district of Panteg comprising portion of Craig-y-Twr Wood the enclosure numbered on the map 15 and part of the enclosure numbered on the map 21 both in the said parish;

(B) Lands in the parish and urban district of Abersychan comprising the whole of the enclosures numbered respectively on the map 1127 1129 1130 1131 1133 and 1134 in that parish and portions of the enclosures respectively numbered on the map 1121 1132 1181 and 1183;

(c) Lands at Cwmavon in the parish and urban district of Blaenavon comprising the whole of the enclosures numbered respectively on the map 603 to 616 (both inclusive) 618 619 and 620 in the said parish and portions of the enclosures numbered respectively on the map 602 621 and 624 and a piece of land forming part of the premises of Westlake's Brewery and including the site of Westlake's spring.

(2) The Company may on the lands (c) above described construct tunnels adits drifts headings pipes conduits filters tanks and other works in connection with the intake tank (B) and line of pipes (No. 11) authorised by the Act of 1909 for the purpose of collecting diverting conveying obtaining raising using



A.D. 1918. — and distributing such of the waters of or arising from Westlake's spring as they are by the Act of 1909 authorised to appropriate and use and all or any springs or other waters situate on or under or flowing in under or upon such lands.

Company  
may  
acquire  
easements  
only for  
certain  
works.

9.—(1) The Company may in lieu of acquiring any lands for the purposes of the new waterworks so far as the same are intended to be constructed underground acquire such easements and rights in such lands as they may require for such purposes and may give notice to treat in respect of such easements and rights describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements and rights as fully as if the same were lands within the meaning of those Acts.

(2) As regards any lands in respect of which the Company have acquired easements only under the provisions of this section the Company shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Act had not passed.

(3) Provided always that nothing in this section contained shall authorise the Company to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Company to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

Limiting  
quantity of  
common  
lands to be  
taken.

10. The quantity of common or commonable lands which may be taken or used by the Company under the powers of this Act shall not exceed the following (that is to say):—

| Work.                                                                         | Name by<br>which the Lands<br>are known. | Parish in<br>which the Lands<br>are situate. | Maximum<br>Quantity to be<br>taken or used<br>compulsorily. |
|-------------------------------------------------------------------------------|------------------------------------------|----------------------------------------------|-------------------------------------------------------------|
| Intake and Collecting Chamber<br>(No. 2).<br>Line or Lines of Pipes (No. 3) - | Little<br>Mountain                       | Abersychan                                   | R.      P.<br>1      27                                     |

And no part of the lands so taken shall be fenced with barbed wire Provided that the Company shall only take for the



purposes of the said works so much of the aforesaid common lands as is actually required for or in connection with those purposes and that for so much of the lines of pipes as is intended to be laid beneath the surface of the ground the Company shall be restricted to an easement only for the purpose of laying constructing maintaining repairing and removing the said lines of pipes

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**11.** Subject to the provisions of this Act the Company may for the purposes of their water undertaking collect take divert convey impound use and appropriate the waters of the Lower Folly spring and the stream leading therefrom the Nant-y-Gollen spring and stream and all such other springs or waters as will or may be intercepted by the intakes and collecting chambers (No. 1) and (No. 2) and any works in connection therewith by this Act authorised or as may be found in on or under any of the lands included within the limits of deviation for the said intakes and collecting chambers as shown on the deposited plans or in on or under the lands (c) described in the section of this Act of which the marginal note is "Power to acquire lands for waterworks" and shown on the deposited plans.

Power to  
take waters.

**12.**—(1) The Company shall not sink any well upon or construct any works for taking or intercepting water from any lands acquired by them unless the lands upon which the same are to be constructed are specified in this or some other Act of Parliament.

Limiting  
powers of  
Company  
to abstract  
water.

(2) Notwithstanding anything in this Act the Company shall continue to allow to flow down the streams leading from the two springs known as the Upper Folly springs twelve thousand gallons of water per day as provided by section 9 of the Act of 1890.

(3) The Company shall on every day allow to flow down the stream leading from the Lower Folly spring not less than seventeen thousand gallons of water (including the twelve thousand gallons referred to in the preceding subsection of this section) measured as hereinafter provided except on any day when the flow of water in such stream is less than seventeen thousand gallons as so measured and on such day the Company shall not take any water from such stream or the Lower Folly spring.

(4) The Company shall erect and maintain at a point situate at a distance of one chain or thereabouts below the intake and



A.D. 1918. — collecting chamber (No. 1) by this Act authorised a suitable gauge for measuring the quantity of water which may be flowing down the last-mentioned stream which gauge shall be open to the inspection and examination of the owner or owners for the time being of the Pontypool Park Estate and his or their tenants and any person duly authorised in that behalf by such owner or owners. If and whenever the said gauge shall be in bad repair or condition and not put into good repair or condition by the Company within seven days after notice in writing so to do given to them by or on behalf of such owner or owners or any of such tenants such owner or owners or tenants may put the gauge into good repair and condition and recover the reasonable expense thereof with costs of suit in any court of competent jurisdiction.

Power to hold lands for protection of waterworks.

**13.**—(1) The Company may hold any lands acquired by them under the powers of this Act which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of this Act or the Lands Clauses Acts respectively but the Company shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their undertaking.

(2) The Company may in and upon the lands referred to in subsection (1) of this section construct and lay down drains sewers watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Company are empowered to take from being polluted and the Company may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

Power to agree as to drainage of lands.

**14.** The Company may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of the new waterworks with reference to the execution by the Company or such owners lessees or occupiers of such works as may be necessary for the purpose of draining



such lands or any of them or for more effectually collecting and conveying and preserving the purity of the waters by this Act authorised to be diverted collected and appropriated by the Company flowing to upon or from such lands directly or derivatively into such works. A.D. 1918.

**15.** Section 22 (Byelaws for preventing pollution of water) of the Act of 1909 shall be read and have effect as though the words "water undertaking" in subsection (1) of that section included the whole of the water undertaking of the Company for the time being existing. Extending section 22 of Act of 1909.

**16.** The Company may on all or any of the lands for the time being held by them in connection with the water undertaking execute for the purposes of or in connection with the water undertaking any of the works mentioned in section 12 of the Waterworks Clauses Act 1847 (other than wells and works for taking and intercepting water) Provided that the Company shall not under the powers of this section create or permit the creation or continuance of any nuisance on any such lands nor erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or in connection with the undertaking. As to exercise of powers of section 12 of Waterworks Clauses Act 1847.

**17.** The provisions of the Waterworks Clauses Act 1847 with respect of the breaking-up of streets shall apply with the necessary modifications to the construction laying down erection and maintenance in any streets or bridges of any discharge pipes telephone or telegraph posts wires conductors or apparatus which the Company may and which they are hereby authorised to lay down or erect for the purposes of the water undertaking. Application of Waterworks Clauses Act 1847 to pipes telephones &c.

**18.—(1)** For the purpose of executing constructing laying down enlarging extending repairing cleansing emptying or examining any reservoir line of pipes well or other waterwork of the Company the Company may cause the water in any such work to be discharged into any available stream or watercourse. Discharge of water into streams.

**(2)** In the exercise of the power conferred by this section the Company shall do as little damage as may be and shall make full compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.



A.D. 1918.  
As to communication  
pipes.

**19.**—(1) For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

(2) The Company may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street in the water limits execute such works on behalf of such owner or occupier and any expenses incurred by the Company shall be repaid by the owner or occupier with whom the agreement is made and shall be recoverable summarily as a civil debt.

Detection of  
waste.

**20.** Subject to the provisions of the Waterworks Clauses Act 1847 the Company may for the purpose of preventing and detecting waste of water affix and maintain meters and other apparatus on the service pipes and mains of the Company used for the supply of water and stop-cocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose temporarily break up and interfere with public and private streets roads lanes footways courts passages tramways sewers pipes wires and apparatus:

Provided that the Company shall not break up or interfere with any wires or apparatus of the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Rates  
payable by  
owners of  
small  
houses.

**21.** Where a house supplied with water is of a rackrent of not exceeding fifteen pounds per annum and let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Company so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.



**22.** The Company shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required. Provided that where the Company decline to afford otherwise than by measure any such supply as aforesaid they shall if required by the person who but for the provisions of this section would have been entitled to demand such supply furnish to the building in respect of which the supply is required a sufficient supply of water by meter at a price not exceeding one shilling and sixpence per thousand gallons which price shall include the rent or other charge for the use of the meter.

A.D. 1918.  
Supply to  
houses  
partly  
used for  
trade &c.

**23.** Where water supplied by the Company to a farmhouse is used for farming purposes the Company may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Company to refuse a supply of water for domestic purposes at the rates authorised by the Act of 1873.

Supply for  
farming  
purposes.

**24.** When water supplied for domestic purposes is used for washing carriages or motor-cars or for other similar purposes in premises where carriages or motor-cars are kept the Company may if a hose pipe or other similar apparatus is used charge such additional sum not exceeding twenty shillings per annum as they may prescribe and any sum charged under this section shall be recoverable in the same manner as water rates.

Supply of  
water by  
hose pipe  
for washing  
carriages &c.

#### GAS.

**25.** For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be a testing place provided by the Company on some part of the lands described in the schedule to the Act of 1873 or in section 41 of the Act of 1909.

Testing  
place.

**26.** The Company shall on or before the first day of January nineteen hundred and nineteen provide and thereafter maintain at the prescribed testing place apparatus for testing the calorific power of the gas supplied by them. The apparatus shall be such as may from time to time be agreed upon between the Company and the respective urban district councils of Pontypool Panteg and Abersychan and shall be used in the mode and under the conditions set forth in the agreement

Apparatus  
for testing.



A.D. 1918.        Failing such agreement the apparatus shall be similar to the apparatus from time to time prescribed by the Metropolitan Gas Referees for testing the calorific power of the gas supplied by the companies referred to in the London Gas Act 1905 and shall be used in the mode and under the conditions for the time being prescribed by the Metropolitan Gas Referees.

Calorific  
power of gas  
supplied.

**27.** As from the first day of January nineteen hundred and nineteen the gas supplied by the Company shall be of a calorific power of not less than five hundred British thermal units when tested in accordance with the provisions of this Act and in the interpretation of this Act the expression "standard calorific power" shall mean five hundred British thermal units and the expression "calorific power" shall mean gross calorific power per cubic foot of gas.

Provisions  
as to testing  
for calorific  
power.

**28.** The following provisions shall apply with respect to the testing for calorific power of the gas supplied by the Company :—

- (1) Any gas examiner appointed under the Gasworks Clauses Act 1871 may by means of the apparatus provided by the Company under the provisions of this Act test at the prescribed testing place at any reasonable hour the calorific power of the gas supplied by the Company :
- (2) The Company may if they think fit on each occasion of the testing of gas under the provisions of this section be represented by some officer who shall not interfere in the testing :
- (3) Not more than one testing for calorific power shall be made on any one day Provided that if on any occasion of testing the calorific power is found to be below the standard calorific power a second testing shall be made on the same day after an interval of not less than one hour and the average of the two testings shall be deemed to be the calorific power of the gas on that day :
- (4) The gas examiner shall forthwith deliver a report of the result of his testing to the local authority and to the Company and that report shall be receivable in evidence.



**29.** If on any day after the thirty-first day of December nineteen hundred and eighteen the calorific power of the gas supplied by the Company is less than the standard calorific power the Company shall be liable to the following penalties in respect of such deficiency (that is to say) :—

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Penalties for  
deficient cal-  
orific power.

If the deficiency does not exceed fourteen British thermal units two pounds;

If the deficiency exceeds fourteen British thermal units but does not amount to twenty-eight British thermal units a sum not exceeding five pounds;

For each complete twenty-eight British thermal units of defective power a sum not exceeding ten pounds:

Provided that the Company shall not be liable to more than one penalty in respect of a deficiency of the calorific power of the gas supplied on any one day.

**30.** On and after the first day of January nineteen hundred and nineteen the provisions of the Gasworks Clauses Act 1871 shall in their application to the Company have effect as if all references to illuminating power and the testing thereof were omitted from that Act and as from that date section 46 (Saving as to penalties in case of gas supply) of the Act of 1909 shall be read and have effect as if the words "calorific power" were inserted therein in lieu of the words "illuminating power."

Provisions as  
to illuminat-  
ing tests to  
cease to  
apply.

**31.** If after the expiration of five years from the passing of this Act application is made to the Board of Trade by the Company or any of the respective urban district councils of Pontypool Panteg and Abersychan to reduce or increase the standard calorific power the Board of Trade after hearing the parties and any other persons who appear to the Board to be interested may make such reduction or increase of the standard calorific power as they think fit.

Power to  
Board of  
Trade to  
vary calorific  
standard.

**32.** On and after the first day of January nineteen hundred and nineteen all gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than fifteen-tenths of an inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer and this pressure shall be deemed to be the prescribed pressure for the purposes of section 36 of the Gasworks Clauses Act 1871. Provided that all gas supplied by the Company to the Great

Pressure of  
gas.



A.D. 1918. Western Railway Company on and after the date aforesaid shall be supplied at such pressure as to balance a column of water not less than twenty-tenths of an inch in height at the inlet of the primary meter or meters registering the supply to such company Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the prescribed testing place or at any public lamp or on the premises of the Great Western Railway Company at the inlet of the primary meter or meters registering the supply to such company as and when he thinks fit test the pressure at which the gas is supplied The Company shall afford to the examiner all reasonable facilities for making the test.

Company to supply suitable burners gratis in certain cases.

**33.** The Company shall if and when required at any time within two years from the first day of January nineteen hundred and nineteen by any consumer of gas supplied by the Company supply to him and fix free of charge a sufficient number of flat flame burners suitable in all respects for the consumption of gas of the quality prescribed by this Act in substitution for the flat flame burners in use at the commencement of this Act.

Notice of this condition shall be given on each demand note of the Company sent out during the period of two years hereinbefore mentioned.

Power to lay pipes for ancillary purposes.

**34.** The Company may lay down repair take up alter relay and renew mains pipes and culverts within the gas limits for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof Provided that the Company shall not exercise the powers of this section or use any mains pipes or culverts laid down thereunder so as to cause a nuisance.

Supply of gas when consumer has separate supply.

**35.** Notwithstanding anything contained in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand from the Company a standby supply of gas for premises having a supply of gas from an installation other than that of



the Company unless he shall have previously agreed to pay to the Company such minimum annual sum as will give to them a reasonable return on the capital expenditure and standing charges incurred by them to meet the possible maximum demand for those premises The minimum annual sum to be so paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889 and shall in every year be merged in the sum payable by such person to the Company for gas supplied to him during that year.

A.D. 1918.

**36.** Notwithstanding anything contained in any enactment to the contrary the Company shall not be obliged until the expiration of six months from the service of notice in writing upon the Company requiring them so to do to give from any main a supply of gas for any purpose other than lighting or domestic use in any case where at the date when such notice is served the capacity of such main is insufficient for such purpose or such supply would interfere with the sufficiency of gas required to be supplied by means of such main for lighting purposes.

Amending obligations as to supply of gas.

**37.** Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator together with an effective non-return valve and shall at all times at his own expense keep such anti-fluctuator and valve in proper repair and in default of his so using or keeping such anti-fluctuator and valve in proper repair the Company may cease to supply gas to such consumer The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator and valve at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator and valve be found in proper order but otherwise at the expense of such consumer.

Power to require use of anti-fluctuators for gas engines.

**38.** The power to enter premises and to remove pipes meters fitting or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings

Power to enter premises and remove fittings.



A.D. 1918. or apparatus belonging to the Company and let by them on hire to any former occupier of such premises.

As to mode of cutting off supplies.

**39.**—(1) In any case in which the Company are by virtue of any enactment relating to the gas undertaking authorised to cut off and discontinue the supply of gas to any premises in consequence of any default on the part of the occupier of the premises it shall be lawful for the Company without prejudice to any other remedy which may be lawfully available to them to disconnect at the meter the service pipe (whether belonging to the consumer or to the Company) and any person who shall reconnect such service pipe with the meter without the consent of the Company shall be deemed to commit an offence within the meaning of section 18 of the Gasworks Clauses Act 1847:

Provided that if and so soon as the matter complained of shall have been remedied nothing in this section shall prejudice or interfere with any rights vested in any person by virtue of section 11 of the Gasworks Clauses Act 1871.

(2) For the purposes of this section the Company shall (subject to the conditions specified in section 22 of the Gasworks Clauses Act 1871) have and may exercise the like powers of entry as are exercisable under the said section 22 for the purposes of that section.

Occupiers to pay expenses of reconnecting disconnected supply.

**40.** In any case in which in consequence of any default on the part of the occupier of any premises the Company shall have cut off the supply of gas to such premises (whether under the existing powers of the Company or under the powers conferred by this Act) and the occupier so in default shall desire to resume such supply he shall pay to the Company the expenses of reconnecting the supply and the Company shall not be under any obligation to supply gas to such occupier until he shall have paid such expenses.

#### FURTHER PROVISIONS AS TO LANDS.

Period for compulsory purchase of lands.

**41.** The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of five years from the termination of the present war.

Power to acquire parts only of certain properties.

**42.** Section 43 (Owners may be required to sell parts only of certain lands and buildings) of the Act of 1909 shall extend and apply to the properties whereof the whole or part is



described in the schedule to this Act and to the owners and other persons interested in such properties and to the Company in relation thereto as if the said section with any necessary modifications were re-enacted in this Act. A.D. 1918.

**43.** Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Persons under disability may grant easements &c.

**44.** In addition to the lands now held or occupied by them and any other lands which they may acquire or hold under the powers of the existing Acts or this Act the Company may from time to time by agreement purchase or acquire and hold for the purposes of the undertaking any lands not exceeding in the whole fifty acres Provided that the Company shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with the undertaking and no such lands shall be used by the Company for the purpose of manufacturing gas or residual products. Additional lands by agreement.

#### PROTECTIVE PROVISIONS.

**45.** For the protection of the governors of the Monmouthshire Agricultural Institution and their successors (in this section referred to as "the governors") the following provisions shall except as otherwise agreed between the governors and the Company have effect :— For protection of Monmouthshire Agricultural Institution.

- (1) Notwithstanding anything in this Act the Company shall not take any waters from the Lower Folly spring and the stream leading therefrom by means of the intake and collecting chamber (No. 1) and the works in connection therewith by this Act authorised when the flow of water in that stream at a point situate at a distance of one chain or thereabouts below the



A.D. 1918.

said intake and collecting chamber (No. 1) is less than at the rate of twenty thousand gallons in twenty-four hours and at any time when such flow of water is in excess of that rate the Company shall be entitled to appropriate only the amount of such excess and the Company shall so construct and maintain the said intake and collecting chamber (No. 1) and the works connected therewith as to prevent any water being appropriated by the Company thereby so long as the quantity of water passing down the said stream at the point aforesaid is less than at the rate of twenty thousand gallons in twenty-four hours :

- (2) The Company shall erect and maintain on the said stream at the point aforesaid a proper and suitable gauge for measuring the quantity of water which may be flowing down such stream which gauge shall be open at all reasonable times to the inspection and examination of the governors and their officials :
- (3) In case of any neglect on the part of the Company to maintain such gauge in a state of efficiency and in the event of the Company taking water from the Lower Folly spring and the stream leading therefrom in breach of the provisions of subsection (1) of this section the Company shall for every day on which such neglect or breach occurs forfeit and pay to the governors (who may sue for and recover the same) the sum of five pounds and shall in addition make full compensation for any loss damage or injury sustained by the governors in consequence of such neglect or breach :
- (4) If any difference arises between the Company and the governors with respect to the construction or use of the gauge or the state of repair or condition thereof such difference shall be referred to the arbitration of an engineer to be nominated (unless otherwise agreed) on the application of either party by the Board of Trade and the Arbitration Act 1889 shall apply to any such reference :
- (5) The provisions of this section shall be accepted and taken by the governors as full compensation for all waters



of the Lower Folly spring and stream leading there-  
from which the Company may divert collect impound  
or appropriate by means of the intake and collecting  
chamber (No. 1) and works in connection therewith by  
this Act authorised.

A.D. 1918.

46. For the protection of John Capel Hanbury or other the  
owner or owners for the time being of the Pontypool Park  
Estate (in this section respectively referred to as "the owner"  
and "the estate") the following provisions shall unless otherwise  
agreed in writing between the owner and the Company have  
effect (that is to say):—

For pro-  
tection of  
John Capel  
Hanbury.

(1) The Company shall not by means of any of the works  
by this Act authorised take or abstract or permit to  
be taken or abstracted below the intakes and collecting  
chambers (No. 1) and (No. 2) the waters of any  
springs or streams arising upon or flowing through  
the estate:

(2) From and after the date when the Company commence  
to take water from the Lower Folly spring and the  
stream leading therefrom they shall if and when  
required so to do by the owner (but except when  
prevented by frost unusual drought or other unavoid-  
able cause or accident) supply to the owner for use  
for trade purposes at any works to be erected on  
lands now forming part of the estate and situate  
within a distance of a quarter of a mile from any  
line or lines of pipes of the Company such quantity  
or quantities of water as the owner or his lessees or  
tenants may require but not exceeding on any one  
day such maximum quantity as the owner may from  
time to time by not less than one month's previous  
notice in writing to the Company demand or the  
quantity of thirty-two thousand gallons whichever is  
the less:

(3) From and after the date when the Company commence  
to take water from the Nant-y-Gollen spring and  
stream the following provisions shall have effect:—

(A) The Company shall if and when required so  
to do by the owner (but except when prevented by  
frost unusual drought or other unavoidable cause  
or accident) supply to the owner for use for trade



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purposes at any works to be erected on lands now forming part of the estate and situate within a distance of a quarter of a mile from any line or lines of pipes of the Company such quantity or quantities of water as the owner or his lessees or tenants may require but not exceeding on any one day such maximum quantity as the owner may from time to time by not less than one month's previous notice in writing to the Company demand or the quantity of forty thousand gallons whichever is the less;

(B) So long as the Company continue to take water from such spring or stream they shall also supply to the owner free of charge for the use of his tenants for agricultural and farming purposes on any farms which at the date of the passing of this Act form part of the estate and are using the waters of such stream for such purposes any quantity of water which such tenants may reasonably require for such purposes Any water so to be supplied for use on any farm shall be delivered by the Company into a tank or trough to be fixed by the Company on such farm in such situation within forty yards of any line of pipes of the Company as the owner or the tenants of the farm may reasonably select and the owner and his tenants shall grant to the Company free of charge all proper facilities for enabling the Company to supply such water accordingly;

(c) So long as the Company continue to take water from such spring or stream they shall allow to flow free of charge (i) into the pond situate on the estate such quantity of water not exceeding on any day one thousand gallons as and when the owner may require and (ii) through the line of pipes by which the owner at the passing of this Act was supplying water from such spring or stream to certain houses and premises of the owner or through any line of pipes to be substituted by the owner therefor such quantity of water not exceeding on any day one thousand gallons as may reasonably be required by the occupiers of



such houses and premises for the purposes for which such water has hitherto been used and the maximum amount of water which the Company are under obligation to supply to the owner under paragraph (A) of this subsection shall be reduced by those respective quantities : A.D. 1918.

- (4) Subject as otherwise in this section provided any water supplied to the owner under subsection (2) or paragraph (A) of subsection (3) of this section shall be used only for trade purposes at any works to be erected and situated as aforesaid and shall be delivered at such point or points as the owner his lessees and tenants may reasonably require :
- (5) For the purpose of measuring the quantities of water (i) to be supplied by the Company to the owner under subsection (2) and under paragraph (A) of subsection (3) of this section and (ii) to be allowed to flow to the pond and through the pipe line mentioned in paragraph (c) of subsection (3) of this section the Company shall provide fix and maintain suitable meters and the owner shall pay a reasonable rent for the meters to be provided for measuring the water to be supplied under subsection (2) and the said paragraph (A) Any meters to be provided under this subsection shall be of such design and be fixed at such points as may be agreed between the Company and the owner or failing agreement be determined by arbitration and the Company and the owner and any person duly authorised by them or him shall at all reasonable times be entitled to access to such meters for the purpose of inspecting and examining the same :
- (6) The owner shall pay to the Company for all water supplied to him under subsection (2) and under paragraph (A) of subsection (3) of this section the sum of sixpence per thousand gallons :
- (7) The Company may acquire and the owner shall if required by the Company sell to the Company all or any estate right title or interest which he may have in the following lands namely :—

(A) The lands numbered on the deposited plans 3 and 4 in the parish of Llanvihangel-Pontymoill



A.D. 1918.

and so much of the lands numbered on the said plans 1 in the said parish as is either included within the limit of lands to be acquired shown on the said plans or required for the construction of the intake and collecting chamber (No. 1) and the right to take the water of the Lower Folly spring at or near the site of the said intake and collecting chamber as marked on the said plans ;

(B) The remainder of the said lands numbered 1 and the lands numbered on the said plans 2 in the said parish ;

(c) The lands numbered on the deposited plans 1 to 17 (inclusive) in the parish of Abersychan or any of such lands ;

(D) Such lands as the Company may require for the purposes of the tanks (No. 1) and (No. 2) by this Act authorised or for enlarging the existing filter house on the properties numbered on the deposited plans 32 and 33 in the parish of Llanvihangel-Pontymoil :

(8) The Company shall pay to the owner for any estate right title or interest which he may have in the lands and water mentioned in paragraph (A) of the preceding subsection of this section a perpetual rent-charge of two pounds per annum and for any estate right title or interest which he may have in the lands mentioned in paragraphs (B) (c) and (D) of the said subsection such sum as may be agreed between the Company and the owner or failing agreement be determined by arbitration :

(9) The Company may also acquire and the owner shall if required by the Company grant an easement or right of constructing maintaining using repairing and inspecting through any lands of the owner any other works authorised by the sections of this Act of which the marginal notes respectively are "Power to make new waterworks" and "Power to make subsidiary works" The consideration for such easement to be such sum as may be agreed between the Company and the owner or failing agreement be determined by arbitration :



- (10) No house or building shall be constructed on any part of the estate in respect of which an easement only is acquired other than valve houses or other similar buildings for working the said lines of pipes and all such houses and buildings shall be of such design and character and height as shall be reasonably approved by the owner: A.D. 1918.
- (11) The Company shall not fence off or sever from the adjoining lands any lands forming part of the estate in respect of which an easement only shall be acquired and after the covering in of the said lines of pipes the owner his lessees and tenants shall have the same rights of passing over and using such lands for all purposes as if such lands had not been taken or used by the Company but so as not to impede or interfere with the exercise of the easements or rights acquired by the Company:
- (12) The intakes collecting chambers lines of pipes and other works by this Act authorised shall be constructed where they are on through or under lands forming part of the estate according to such plan section and particulars and in such manner as shall be reasonably approved by the owner and before entering upon any part of the estate for the purpose of constructing any of the works by this Act authorised the Company shall give not less than ten days' written notice to the owner of their intention so to do and the construction of the said works when commenced shall be completed within a reasonable time from the date of commencement:
- (13) In the construction and maintenance of the said works in or upon any part of the estate in respect of which an easement only is acquired by the Company they shall firstly carefully remove from the surface all vegetable soil on the line or site of the works and on the completion of such construction or maintenance they shall replace such soil so as to restore the surface as nearly as may be to its former state All surplus soil or material excavated in the construction or maintenance of the works shall be deposited on such part of the estate as the owner may direct not being at a greater distance from the place from which the



A.D. 1918.

same was excavated than one quarter of a mile No materials other than such as shall have been excavated from the estate or than such as shall be required for the construction of the works shall be deposited upon any part of the estate which shall not have been acquired by the Company :

- (14) The Company shall in constructing and repairing or renewing any line or lines of pipes or other work on or through any part of the estate fence in all excavations from time to time made on the land of the owner or in some other effectual manner prevent cattle sheep or other animals from falling into such excavations and the Company shall when the works are completed remove such fences :
- (15) All walls fences gates sewers drains pipes and other like matters and things belonging to the owner which may be interfered with by the Company during the construction or maintenance of the said works shall subject to the provisions of this section be made good as soon as practicable by the Company who shall in such construction and maintenance do as little damage as possible to the estate and to the user and enjoyment thereof :
- (16) The Company shall in addition to any other compensation payable to the owner his lessees or tenants under the provisions of this Act or any Act incorporated therewith be responsible for and pay to the owner his lessees or tenants for all damage and injury to the stock trees or crops of the owner his lessees or tenants caused by or consequent upon the construction or maintenance of any of the works by this Act authorised :
- (17) In the construction maintenance and user of the works by this Act authorised the Company shall do as little damage as may be to any trees upon any part of the estate through which an easement only is acquired by the Company :
- (18) Any difference which may arise between the Company and the owner with respect to any of the provisions of this section and any matter required by this section to be determined by arbitration shall be



referred to a single arbitrator who unless otherwise agreed between the Company and the owner shall be appointed by the President of the Surveyors' Institution and the Arbitration Act 1889 shall apply to any such reference.

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47. For the protection of the county council of the administrative county of Monmouth (in this section called "the county council") the following provisions unless otherwise agreed in writing between the Company and the county council shall apply and have effect (that is to say):—

For protec-  
tion of Mon-  
mouthshire  
County  
Council.

- (1) In relation to any main road or county or main road bridge maintainable by the county council section 8 of the Gasworks Clauses Act 1847 and section 30 of the Waterworks Clauses Act 1847 as incorporated with this Act shall (except for the laying connecting or repairing of consumers' service pipes) respectively have effect as if the word "seven" were substituted for the word "three" in those sections:
- (2) The Company shall not permit any trench made by them in any main road maintainable by the county council to be opened for a greater consecutive distance than two hundred yards if in such length of two hundred yards there is not room for two carts to pass one another:
- (3) In the case of any mains or pipes which it is necessary to lay otherwise than in the roadway over any county or main road bridge maintainable by the county council the same shall be carried either on or alongside such bridge in such manner as the county council may in writing under the hand of their surveyor reasonably direct and except as aforesaid the Company shall not interfere with the structural part of any such county or main road bridge:
- (4) If for the purpose of repairing altering diverting or widening any road or county or main road bridge maintainable by the county council or of rebuilding any such bridge the county council require any alteration either temporary or permanent in the position of any mains pipes or other works of the Company or any support to be given thereto the Company shall with all due expedition on receiving



A.D. 1918.

notice in writing under the hand of the clerk or surveyor of the county council so to do alter the position of or support of any such works in the manner and to the extent provided by such notice Provided that the county council shall afford any reasonable facilities required by the Company to enable them temporarily to carry their mains across any stream or brook so as not to interrupt the continuous supply of gas or water Provided also that (except in the case of expenses incurred in connection with the alteration or supporting of mains pipes or works laid on or alongside or in the roadway over any county or main road bridge) the county council shall repay to the Company all expenses reasonably incurred by the Company in complying with any requirements of the county council under this subsection :

- (5) Whenever the Company in the exercise of their statutory power shall have opened or broken up the carriageway or footway of any main road or county or main road bridge maintainable by the county council the Company shall reinstate and make good such road to the reasonable satisfaction of the county council and for that purpose section 10 of the Gasworks Clauses Act 1847 and section 32 of the Waterworks Clauses Act 1847 as the case may be shall have effect as if the reinstatement and making good of the road required by those sections included the application of a sufficient layer of surface metalling of the same specification as that employed by the county council for the particular carriageway or footway and also included the use of a steam roller on the places where the carriageway has been broken up until the surface thereof has been made uniform with the unbroken surface adjoining :
- (6) If the Company after notice from the county council under the hand of their surveyor shall neglect to do or complete any work or act required by subsections (4) or (5) of this section to be done by the Company then and in any such case the county council may do such work or act themselves under the superintendence (if given) of the Company causing



as little damage or inconvenience to the Company as the circumstances may admit and the Company shall repay to the county council all expenses reasonably incurred by the county council in connection with any such work or act required by the said subsection (5) or required by the said subsection (4) in connection with the alteration or supporting of mains pipes or works laid on or alongside or in the roadway over any county or main road bridge:

A.D. 1918.  
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- (7) The surplus paving metalling or materials removed during the laying renewal or repair of the mains pipes or works of the Company shall not be placed on the metalled portion of any main road or in or upon any county or main road bridge without the written consent of the county surveyor or subject to such conditions and directions as he may require or give:
- (8) All surplus paving metalling or materials removed during the laying of the mains pipes or works on any main road or in or upon or across any county or main road bridge not required by the Company for the purpose of reinstating and making good the said road or bridge may be used by the county council for the maintenance and repair of any main or other road and may be removed by the county council for that purpose:
- (9) If any difference shall at any time arise between the county council and the Company touching this section or anything to be done or not to be done thereunder such difference shall be settled by an arbitrator to be agreed upon between them or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration as aforesaid.

48. Notwithstanding anything in this Act or shown on the deposited plans the following provisions for the protection of Westlake's Brewery Limited (hereinafter referred to as "the

For protection of Westlake's Brewery Limited.



A.D. 1918. owner") shall unless otherwise agreed between the Company  
— and the owner have effect:—

(1) The Company shall not under the powers of this Act acquire any lands or premises of the owner in the urban district of Blaenavon or any easement or rights therein or directly or indirectly abstract any water therefrom except as hereinafter provided:

(2) The Company may acquire and the owner will if so required by the Company grant to the Company the following easements and rights (that is to say):—

(i) An easement of constructing in and through the properties numbered on the deposited plans 31 32 and 33 in the parish of Blaenavon the line or lines of pipes (No. 5) by this Act authorised;

(ii) An easement of constructing in and through the property numbered on the said plans 34 in the said parish a line or lines of pipes communicating with the said line or lines of pipes (No. 5) from the lands (c) described in the section of this Act whereof the marginal note is "Power to acquire lands for waterworks";

(iii) An easement of constructing and doing in the said properties or any of them such other works or things in connection with the said lines of pipes or either of them as may be necessary for the purpose of abstracting and conveying surplus water from the said lands (c) as hereinafter provided;

(iv) An easement of maintaining renewing inspecting and using the said lines of pipes and other works or any of them; and

(v) Such rights of access over and along the said properties as may be necessary for the proper enjoyment of the said easements:

(3) The Company may abstract and utilise for the purposes of their undertaking any surplus waters of the owner arising or being on or under the said lands (c):

(4) The sum to be paid by the Company to the owner for such easements and rights as aforesaid and for such surplus waters of the owner shall in default of agreement between the Company and the owner be referred



to a single arbitrator to be appointed (unless otherwise agreed) by the President of the Surveyors' Institution and the Arbitration Act 1889 shall apply to the reference.

A.D. 1918.  
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49. The Company shall not without the consent in writing of the Great Western Railway Company first had and obtained enter upon take or use any portion of the lands coloured pink on the plan signed by T. and C. Hawksley on behalf of the Company and William Wylie Grierson on behalf of the Great Western Railway Company.

For protec-  
tion of Great  
Western  
Railway  
Company.

50. Any telephone or telegraph posts wires conductors or apparatus made maintained laid down or erected by the Company under the authority of this Act shall not be used for the purpose of transmitting telegrams which are within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

For protec-  
tion of Post-  
master-  
General.

#### FINANCIAL.

51. The Company may from time to time raise additional capital not exceeding in the whole fifteen thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by any one or more of those modes respectively but the Company shall not under the powers of this section (A) issue any share of less nominal value than ten pounds and (B) create and issue any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of fifteen thousand pounds Provided that the powers of raising additional capital conferred by this section shall not be exercised unless within four years from the termination of the present war the Company shall have substantially commenced the construction of the new waterworks.

Power to  
Company  
to raise  
additional  
capital.

52. The Company may borrow on mortgage of the undertaking (in addition to the sums which they are authorised to borrow by the existing Acts) any sum or sums not exceeding in the whole one-third part of the amount of the additional capital by this Act authorised to be raised which at the time of borrowing has been raised by the Company but no sums shall be borrowed in respect of any capital so raised until the Company have proved to a justice of the peace before he gives his certificate under

Power to  
borrow.



A.D. 1918. — the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the shares or stock at the time issued together with the premiums (if any) realised on the sale thereof have been fully paid up.

Repeal of provisions of Act of 1909 as to receiver.

**53.** Section 68 (As to appointment of a receiver) of the Act of 1909 is hereby repealed but subject and without prejudice to any appointments made or proceedings taken under or by virtue of that section and in force or pending at the time of the passing of this Act.

As to appointment of a receiver.

**54.** The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

Debenture stock.

**55.** The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and of section 69 of the Act of 1909.

Issue of redeemable preference capital and debenture stock.

**56.**—(1) If the Company desire to raise by the issue of preference shares or stock any capital which they are by this Act authorised to raise or to issue any debenture stock under the powers of this Act they may create and issue such preference shares or stock or debenture stock so as to be redeemable on such terms and conditions as may be specified in a resolution of the Company passed by a special meeting convened for the purpose.

(2) If it is so provided in the resolution the Company may—

(a) call in and pay off the shares or stock or any part thereof at any time before the fixed date of redemption; and

(b) redeem the shares or stock or any part thereof either by paying off the shares or stock or by issuing to any shareholder or stockholder subject to his consent other shares or stock in substitution therefor and may for the purpose of providing money for paying off the shares or stock or of providing substituted shares or stock create and issue new shares or stock (either redeemable or irredeemable) or reissue shares or stock



originally created and issued under this section Pro- A.D. 1918.  
 vided that the creation and issue of any preference  
 capital under this section does not make the total  
 nominal amount of preference and ordinary capital  
 issued under this Act exceed the amount of such  
 capital which the Company are by this Act authorised  
 to issue Provided also that the creation and issue of  
 debenture stock under this section is not in excess of  
 the amount of debenture stock which the Company  
 are for the time being authorised to create and issue  
 under the powers of this Act.

(3) The Company shall not redeem out of revenue any  
 shares or stock created under this section.

**57.** If any money is payable to any shareholder stockholder Receipt in  
 mortgagee or debenture stock holder being a minor idiot or case of  
 lunatic the receipt of the guardian or committee or receiver of persons not  
 his estate shall be a sufficient discharge to the Company. sui juris.

**58.** The Company shall not under the powers of this Act Consent of  
 raise or borrow any money (except for the payment of the costs Treasury to  
 charges and expenses referred to in the final section of this raising of  
 Act) during the present war and within twelve months there- money.  
 after unless the consent of the Treasury has been previously  
 obtained.

**59.** The following sections of the Act of 1909 shall so far Application  
 as the same are applicable extend and apply to and for the of sections of  
 purposes of this Act as if the same with any necessary alterations Act of 1909.  
 were re-enacted in this Act (that is to say):—

Section 60 (As to voting in respect of preference  
 capital);

Section 61 (Incidents of additional capital);

Section 62 (Limit of dividend on additional capital);

Section 63 (Dividends on different classes of shares to be  
 paid rateably);

Section 64 (New shares or stock to be sold by auction  
 or tender);

Section 70 (Priority of mortgages over other debts);

Section 71 (Application of moneys).



A.D. 1918.

ADMINISTRATIVE PROVISIONS.

Meetings of  
Company.

**60.** Notwithstanding anything in section 66 of the Companies Clauses Consolidation Act 1845 the Company may by a resolution of a general meeting at any time determine that the future ordinary meetings of the Company shall be held once only in each year in such month as may be prescribed by such resolution and the Company may from time to time in like manner alter or rescind any such resolution.

Quorum of  
ordinary  
meetings.

**61.** The prescribed quorum of a general meeting of the Company shall be seven holders of shares or stock of the Company entitled to vote.

Closing of  
transfer  
books  
previous to  
declaring  
dividend or  
paying  
interest.

**62.**—(1) The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any dividend and they may close the register of transfers of debenture stock for a period not exceeding fourteen days previous to each date at which the interest thereon shall be payable and in the case of either such register they may fix a day for closing the same of which seven days' notice shall be given either by circular to each proprietor or by advertisement in a newspaper published or circulating in the water limits and the gas limits.

(2) Any transfer of shares stock or debenture stock made during the time when the register of transfers or the register of transfers of debenture stock as the case may be is so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend or the payment of any such interest as the case may be.

Number of  
directors.

**63.** The number of directors shall be six but the directors may vary the number provided that the number shall not at any time be more than nine or less than five.

Quorum of  
directors'  
meeting.

**64.** The quorum of a meeting of the directors shall be three.

Qualification  
of directors.

**65.** The qualification of a director shall be the possession in his own right of fully paid shares or stock of the Company of a total nominal amount of not less than five hundred pounds.

Notice of  
candidature  
for office of  
director.

**66.** Except in the case of a director retiring by rotation and offering himself or being proposed for re-election no person shall be capable of being elected at a general meeting a director of the Company unless notice in writing that such person intends



to offer himself or will be proposed for the office of director shall have been given to the secretary or left at the office of the Company ten days at least before the day of election. A.D. 1918.

**67.**—(1) The prescribed number of auditors shall be one unless the number be increased to two by an order of a general meeting and such auditor or auditors shall be a member or members of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors or an accountant or accountants approved by the Board of Trade. Auditors.

(2) It shall not be necessary for any auditor to hold any shares or stock in the Company.

**68.** In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary and auditors. Determination of remuneration of secretary and auditors.

**69.** Notwithstanding anything in the Companies Clauses Consolidation Act 1845 the attorney of any shareholder or stockholder of the Company duly authorised in writing may appoint a proxy to vote for and on behalf of the shareholder or stockholder and for that purpose may execute on behalf of the shareholder or stockholder the necessary form of proxy Provided that the instrument appointing the attorney shall be transmitted to the secretary at the same time as the instrument appointing the proxy. Appointment of proxies.

**70.** Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any shares or stock in the capital of the Company any one of those persons may vote at any meeting (at which holders of shares or stock of the same class are entitled to vote) either personally or by proxy in respect of the shares or stock as if he were solely entitled thereto but if more than one of the joint holders be present at any meeting personally or by proxy that one of the said persons so present whose name stands first on the register in respect of the shares or stock shall alone be entitled to vote in respect thereof. Joint holders.

**71.**—(1) The directors may grant such gratuities pensions or allowances or make such other payments as they may think fit to any employees of the Company. Power to grant pensions &c.

(2) In the event of any such employee being killed in action or dying of wounds injuries or disease received or



A.D. 1918. — contracted whilst serving with any of His Majesty's forces in war the directors may where adequate provision is not otherwise made grant such gratuities pensions or allowances or may make such other payment as they may think fit to the widow or family or any dependent of such employee.

(3) The directors may enter into and carry into effect agreements with any insurance company or other association or company for securing to any such employee widow family or dependent as aforesaid such gratuities pensions allowances or payments as are by this section authorised to be granted or made and may for all or any of the purposes of this section apply the funds and revenues of the Company.

(4) In this section the word "employee" includes any officer or servant.

Power to  
directors to  
make dona-  
tions sub-  
scriptions]  
&c.

**72.** The directors may subscribe or make donations to any fund raised in any case of national emergency or to infirmaries and hospitals and convalescent homes and other institutions and objects in the water limits or the gas limits or to the benevolent and sick funds of the officers servants and employees of the Company and may for any of those purposes apply the funds and revenues of the Company.

#### MISCELLANEOUS.

Authentica-  
tion and  
service of  
notices by  
Company.

**73.** Any notice to be served by the Company on a person supplied with water or gas shall be sufficiently authenticated by the signature of the secretary or other officer of the Company for the time being authorised in writing by the directors being affixed thereto in writing or in print or by a stamp or if it be a notice to pay any charge in respect of a supply of water or gas by the name either of the secretary or of such other officer as aforesaid being affixed thereto as aforesaid and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.



74. Where the payment of more than one sum by any person is due under this Act or any other Act relating to the Company any summons or warrant issued for the purposes of such Acts or any of them in respect of that person may contain in the body thereof or a schedule thereto all the sums payable by him.

A.D. 1918.  
Contents of  
summons &c.

75. Proceedings for the recovery of any demand made under the authority of the existing Acts or this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of  
demands.

76. The sections of the existing Acts hereinafter mentioned shall as from the respective dates hereinafter stated be by virtue of this Act repealed (that is to say):—

Repeal.

| Section.                                                    | Date of Repeal taking effect. |
|-------------------------------------------------------------|-------------------------------|
| Act of 1873—                                                |                               |
| Section 34 Number of directors - - -                        | Passing of this Act.          |
| Section 35 Qualification of directors - - -                 | Passing of this Act.          |
| Section 36 Quorum - - -                                     | Passing of this Act.          |
| Section 43 Pressure of gas - - -                            | 1st January 1919.             |
| Section 44 Quality and testing of gas - - -                 | 1st January 1919.             |
| Act of 1890—                                                |                               |
| Section 39 As to conversion of borrowed money into capital. | Passing of this Act.          |
| Act of 1909—                                                |                               |
| Section 40 Testing for quality of gas - - -                 | 1st January 1919.             |

77. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and apportioned between the water undertaking and the gas undertaking as the auditor or auditors of the Company may determine and may in whole or in part be charged against revenue Provided that there shall not be charged against the revenue of any one year more than one-fifth part of such costs charges and expenses.

Costs of Act.



A.D. 1918.      The SCHEDULE referred to in the foregoing Act.

PROPERTIES WHEREOF A PORTION ONLY MAY BE REQUIRED TO BE  
TAKEN BY THE COMPANY.

| Works or Lands.        |       | Nos. on<br>deposited<br>Plans. | Parish.                     | Description of Property.                                                     |
|------------------------|-------|--------------------------------|-----------------------------|------------------------------------------------------------------------------|
| Line of Pipes          | No. 1 | 7                              | Llanvihangel-<br>Pontymoill | Garden land and shed.                                                        |
| "                      | No. 3 | 14                             | Abersychan                  | Dwelling-house and footpath.                                                 |
| "                      | No. 3 | 15                             | "                           | Dwelling-house and footpath.                                                 |
| "                      | No. 3 | 16                             | "                           | Pigcot.                                                                      |
| "                      | No. 3 | 17                             | "                           | Garden land.                                                                 |
| "                      | No. 3 | 30                             | "                           | French barns and ricks of hay.                                               |
| "                      | No. 3 | 34                             | "                           | Yard private road public foot-<br>path barns cowsheds stable<br>and pigcots. |
| "                      | No. 5 | 31                             | Blaenavon                   | Occupation road bridge and<br>watercourse.                                   |
| "                      | No. 5 | 32                             | "                           | River bank.                                                                  |
| "                      | No. 5 | 33                             | "                           | Occupation road and coal<br>house.                                           |
| Lands to be acquired - |       | 34                             | "                           | Rough land tanks and stream.                                                 |

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